PARTNERS of the AMERICAS
Connect • Serve • Change Lives

FMLA Leave Expansion and Emergency Paid Sick Leave Policy (Coronavirus)

1. Purpose

To comply with the Families First Coronavirus Response Act and to assist employees affected by the COVID-19 outbreak with job-protected leave and pay, where applicable. This policy will be in effect from April 1, 2020, until December 31, 2020, unless otherwise indicated from the USG. Our existing FMLA leave policy still applies to all other FMLA-qualifying reasons for leave outside of this policy.

2. Expanded FMLA Leave (EFMLA)

2.1. Employee Eligibility

All current employees who have been employed with Partners of the Americas for at least 30 days and are actively scheduled for work are eligible for leave under this policy.

Employees laid off or otherwise terminated on or after March 1, 2020, who are rehired on or before December 31, 2020, are eligible for leave upon reinstatement if they had previously been employed with Partners of the Americas for 30 or more of the 60 calendar days prior to their layoff or termination.

2.2. Reason for Leave

Eligible employees who are unable to work (or telework) due to a need to care for their child when a school or place of care has been closed, or when the regular child care provider is unavailable due to a public health emergency with respect to COVID-19.

“Child” means a biological, adopted or foster child, a stepchild, a legal ward, or a child of a person standing in loco parentis, who is:

- Under 18 years of age.
- 18 or older and incapable of self-care because of a mental or physical disability.

“Child care provider” means a provider who receives compensation for providing child care services on a regular basis, including:

- A center-based child care provider.
- A group home child care provider.

- A family child care provider (one individual who provides child care services for fewer than 24 hours per day, as the sole caregiver, and in a private residence).
- Other licensed provider of childcare services for compensation.
- A childcare provider that is 18 years of age or older who provides child care services to children who are either the grandchild, great grandchild, sibling (if such provider lives in a separate residence), niece or nephew of such provider, at the direction of the parent.

"School" means an elementary or secondary school.

2.3. Duration of Leave

Employees will have up to 12 weeks of leave to use from April 1, 2020, through December 31, 2020, for the purposes stated above. This time is included in and not in addition to the total FMLA leave entitlement of 12 weeks in a 12-month period.

For example, if an employee has already taken 6 weeks of FMLA leave, that employee would be eligible for another 6 weeks of FMLA leave under this policy.

2.4. Increments & Intermittent Use of Leave

Employees may take expanded FMLA leave intermittently and in any increment agreed to with their manager. For example, an employee may only need 4 hours per day of leave to care for his or her child or may only need to do so on Tuesdays and Thursdays. Managers and employees are expected to be flexible in scheduling wherever possible.

Managers and employees are encouraged to use our current FWA policy, with additional flexibility within the CORE hours (10AM – 3PM EST), as long as this arrangement does not negatively impact the team or the organization.

2.5. Pay During Leave

Leave will be unpaid for the first 10 days of leave; however, employees may use accrued paid vacation, sick or personal leave during this time. The employee may also elect to use the paid leave provided under the Emergency Paid Sick Leave Act, as further explained below. After the first 10 days, leave will be paid at two-thirds of an employee's regular rate of pay for the number of hours the employee would otherwise be scheduled to work. Pay will not exceed $200 per day and $10,000 in total, or $12,000 in total if using emergency paid sick leave for the first two weeks. Any unused portion of this pay will not carry over to the next year.

For employees with varying hours, one of two methods for computing the number of hours paid will be used:

- If the employee has worked 6 months or more, the average number of hours that the employee was scheduled per day over the 6-month period ending on the date on which the employee takes leave, including hours for which the employee took leave of any type.
- If the employee has worked less than 6 months, the expected number of hours to be scheduled per day at the time of hire.

Employees may also supplement the two-thirds pay with accrued company paid time off (PTO) not to exceed 100% of regular pay. For example, an employee may choose to use one-third of an hour of PTO for each hour of expanded FMLA leave taken to reach 100% of normal pay per hour. If an employee would like to supplement the two-thirds pay with accrued PTO, this request must be approved in writing with the President & CEO prior to the leave occurrence.

2.6. Employee Status and Benefits During Leave

While an employee is on leave, the company will continue the employee's health benefits during the leave period at the same level and under the same conditions as if the employee had continued to work. While on paid leave, the employer will continue to make payroll deductions to collect the employee's share of the premium. During any unpaid portions of leave, the employee must continue to make this payment per instructions from the HR department.

If the employee contributes to a life insurance or disability plan, the employer will continue making payroll deductions while the employee is on paid leave. During any portion of unpaid leave, the employee may request continuation of such benefits and pay his or her portion of the premiums, or the employer may elect to maintain such benefits during the leave and pay the employee's share of the premium payments. If the employee does not continue these payments, the employer may discontinue coverage during the leave. If the employer maintains coverage, the employer may recover the costs incurred for paying the employee's share of any premiums, whether or not the employee returns to work.

2.7. Procedure for Requesting Leave

All employees requesting FMLA leave must provide written notice of the need for leave to the HR manager as soon as practicable. HR will provide an Expanded FMLA Request template. Verbal notice will otherwise be accepted until written notice can be provided.

Notice of the need for leave must include:

- The name and age of the child or children being care for.

- The name of the school, place of care, or child care provider that closed or became unavailable due to COVID-19 reasons.
- A statement representing that no other suitable person is available to care for the child or children during the period of requested leave. For children over the age of 14, a statement indicating the special circumstances that require the employee to provide care during daylight hours.

On a basis that does not discriminate against employees on FMLA leave, the company may require an employee on FMLA leave to report periodically on the employee's status and intent to return to work.

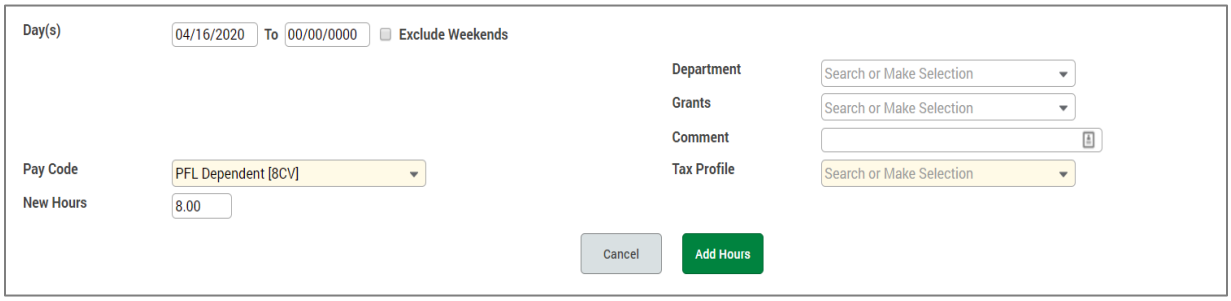
2.8. Employee Status After Leave

Generally, an employee who takes FMLA leave will be able to return to the same position or a position with equivalent status, pay, benefits and other employment terms. The company may choose to exempt certain key employees from this requirement and not return them to the same or similar position when doing so will cause substantial and grievous economic injury to business operations. Key employees will be given written notice at the time FMLA leave is requested of their status as a key employee.

Please contact the HR department with any questions.

2.9. Recording Expanded FMLA Leave in Paycom

Employees will record use of Expanded FMLA Leave in Paycom by selecting the pay code: ***PFL Dependent [8CV]*** as shown below:



The department and grant can be left blank, as the system will default to the home department. Please note this coding is updated on the back end upon processing payroll. Please note the cap per day for Expanded FMLA Leave is $200.

3. Emergency Paid Sick Leave (EPSL)

3.1. Eligibility

All current full- and part-time employees scheduled but unable to work (or telework) due to one of the following reasons for leave:

1. The employee is subject to a federal, state or local quarantine or isolation order related to COVID–19.
2. The employee has been advised by a health care provider to self-quarantine due to concerns related to COVID–19.
3. The employee is experiencing symptoms of COVID–19 and seeking a medical diagnosis.
4. The employee is caring for his/her child or is caring for an individual who is subject to either number 1 or 2 above.
5. The employee is experiencing any other substantially similar condition specified by the secretary of health and human services in consultation with the secretary of the treasury and the secretary of labor.

"Child" means a biological, adopted or foster child, a stepchild, a legal ward, or a child of a person standing in loco parentis, who is:

- Under 18 years of age.
- 18 or older and incapable of self-care because of a mental or physical disability.

"Individual" means an immediate family member, roommate or similar person with whom the employee has a relationship that creates an expectation that the employee would care for the person if he or she self-quarantined or was quarantined. Additionally, the individual being cared for must: a) be subject to a federal, state or local quarantine or isolation order as described above; or b) have been advised by a health care provider to self-quarantine based on a belief that he or she has COVID-19, may have COVID-19 or is particularly vulnerable to COVID-19.

Furloughed employees are not eligible as there is no work available from which to take leave.

3.2. Amount of Paid Sick Leave

All eligible full-time employees will have up to 80 hours of paid sick leave available to use for the qualifying reasons above. Eligible part-time employees are entitled to the number of hours worked, on average, over a two-week period.

For employees with varying hours, one of two methods for computing the number of hours paid will be used:

- If the employee has worked 6 months or more, the average number of hours that the employee was scheduled per day over the 6-month period ending on the date on which the employee takes leave, including hours for which the employee took leave of any type.
- If the employee has worked less than 6 months, the expected number of hours to be scheduled per day at the time of hire.

3.3. Increments and Intermittent Use of Leave

When working from home, employees may take emergency paid sick leave intermittently in no less than 3-hour increments, as agreed to with their manager. As in the example for FMLA leave, an employee may only need 4 hours per day of leave to care for his or her child or may only need to do so on Tuesdays and Thursdays. Managers and employees are expected to be flexible in scheduling wherever possible.

For those not teleworking and currently working onsite, an employee may only take intermittent leave for reason 5 above, to care for his or her child when the school or place of care is closed, or the caregiver is unavailable due to COVID-19-related reasons. Per the regulations, as all other reasons for emergency paid sick leave could potentially expose an employee or others in the workplace to the virus, employees must either use the full amount of paid sick leave or use it in full-day increments until the reason for leave is over and it is safe for the employee to return to work.

Managers and employees are encouraged to use our current FWA policy, with additional flexibility within the CORE hours (10AM – 3PM EST), as long as this arrangement does not negatively impact the team or the organization.

3.4. Rate of Pay

Emergency sick leave will be paid at the employee's regular rate of pay, or minimum wage, whichever is greater, for leave taken for reasons 1-3 above. Employees taking leave for reasons 4-6 will be compensated at two-thirds their regular rate of pay, or minimum wage, whichever is greater. Pay will not exceed:

- $511 per day and $5,110 in total for leave taken for reasons 1-3 above.
- $200 per day and $2,000 in total for leave taken for reasons 4-5 above.

Employees may also supplement the pay with accrued company paid time off (PTO) not to exceed 100% of regular pay. For example, an employee may choose to use one-third of an hour of PTO for each hour of emergency sick leave taken to reach 100% of normal pay per hour. If an employee would like to supplement the two-thirds pay with accrued PTO, this request must be approved in writing with the President & CEO prior to the leave occurrence.

3.5. Interaction with Other Paid Leave

The employee may use emergency paid sick leave under this policy before using any other accrued paid time off for the qualifying reasons stated above.

Employees on expanded FMLA leave under this policy may use emergency paid sick leave concurrently with that leave. Emergency paid sick leave may also be used when an employee is on leave under traditional FMLA for his or her own COVID-19-related serious health condition or to care for a qualified family member with such a condition.

3.6. Procedure for Requesting Emergency Paid Sick Leave

Employees must notify their manager or the HR manager of the need and specific reason for leave under this policy. HR will provide a template for requesting Emergency Paid Sick Leave. Verbal notification will be accepted until practicable to provide written notice.

Documentation supporting the need for leave must be included with the leave request form, such as:

- A copy of the federal, state or local quarantine or isolation order related to COVID-19 applicable to the employee or the name of the government entity that issued the order.
- Written documentation by a health care provider advising the employee to self-quarantine due to concerns related to COVID-19 or the name of the provider who advised the employee.
- The name and relation of the individual the employee is taking leave to care for who is subject to a quarantine or isolation order or is advised to self-quarantine.
- The name and age of the child or children being cared for; the name of the school, place of care, or child care provider that closed or became unavailable; and a statement that no other suitable person is available to care for the child during the period of requested leave.
    - For children over age 14, a statement indicating the special circumstances that require the employee to provide care during daylight hours.

Once emergency paid sick leave has begun, the employee and his or her manager must determine reasonable procedures for the employee to report periodically on the employee's status and intent to continue to receive paid sick time.

3.7. Carryover

Paid emergency sick leave under this policy will not be provided beyond December 31, 2020. Any unused paid sick leave will not carry over to the next year or be paid out to employees.

3.8. Job Protections

No employee who appropriately utilizes emergency paid sick leave under this policy will be discharged, disciplined or discriminated against for work time missed due to this leave.

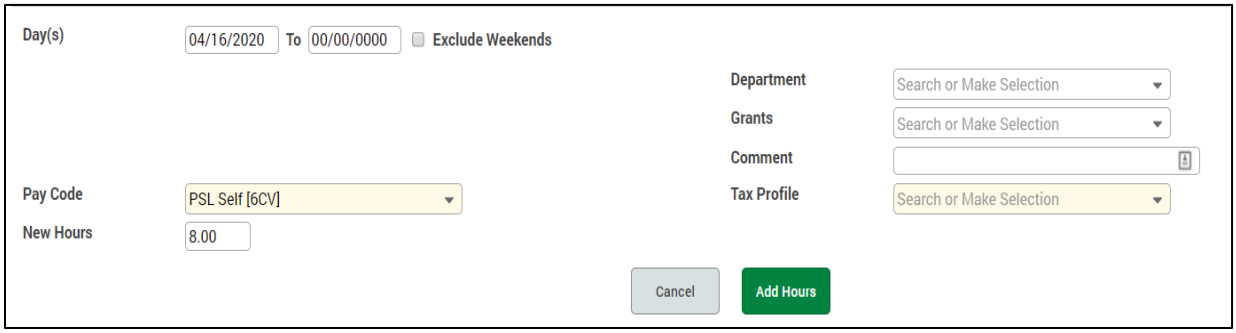
Please contact the HR department with any questions.

3.9. Recording Emergency Paid Sick Leave in Paycom

Employees will record use of Emergency Paid Sick Leave in Paycom depending on the reason for its use as follows:

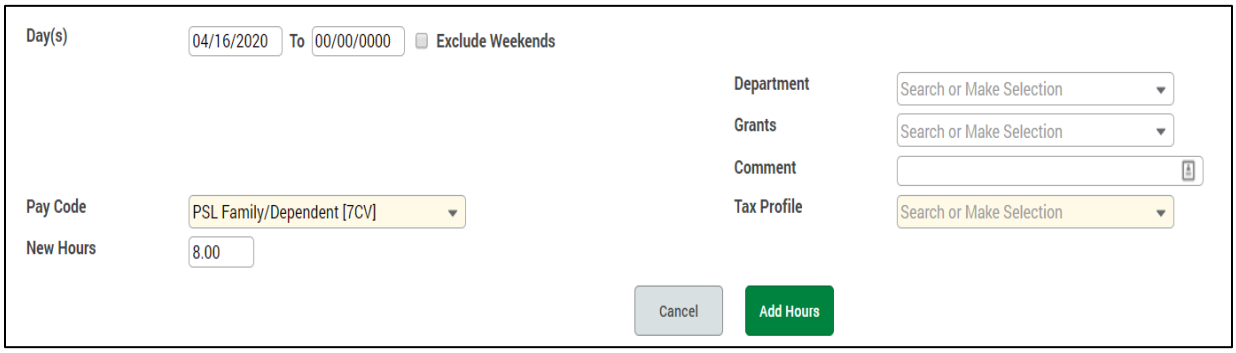
1. The employee is subject to a federal, state or local quarantine or isolation order related to COVID–19.
2. The employee has been advised by a health care provider to self-quarantine due to concerns related to COVID–19.
3. The employee is experiencing symptoms of COVID–19 and seeking a medical diagnosis.
4. The employee is caring for an individual who is subject to either number 1 or 2 above.
5. The employee is experiencing any other substantially similar condition specified by the secretary of health and human services in consultation with the secretary of the treasury and the secretary of labor.

For reasons 1-3 above, employees will record use of Emergency Paid Sick Leave in Paycom by selecting the pay code: ***PSL Self [6CV]*** as shown below:



Please note the cap per day for Emergency Paid Sick Leave for reasons 1-3, is $511/day. The department and grant can be left blank, as the system will default to the home department. Please note this coding is updated on the back end upon processing payroll.

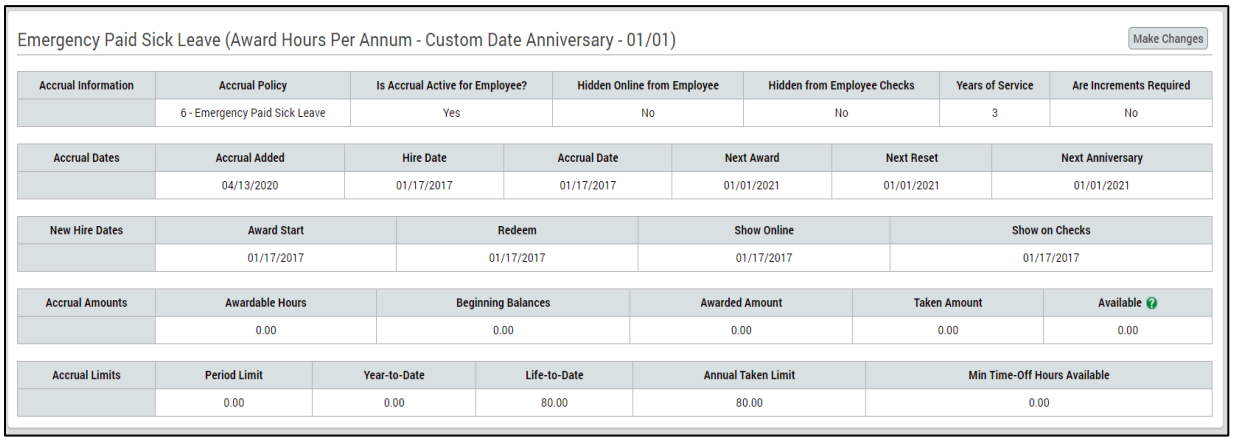
For reasons 4-6 above, employees will record use of Emergency Paid Sick Leave in Paycom by selecting the pay code: ***PSL Family/Dependent [7CV]*** as shown below:



Please note the cap per day for Emergency Paid Sick Leave for reasons 4-6, is $200/day. The department and grant can be left blank, as the system will default to the home department. Please note this coding is updated on the back end upon processing payroll.

3.10. Tracking Emergency Paid Sick Leave in Paycom

As mentioned above, all eligible full-time employees will have up to 80 hours of paid sick leave available to use for the qualifying reasons above. Employees will be able to track use of the Emergency Paid Sick Leave under their Paycom profile. Employees should select "Accrual Information" and review the Emergency Paid Sick Leave box, as shown below:



Emergency Paid Sick Leave (Award Hours Per Annum - Custom Date Anniversary - 01/01)

Make Changes

Accrual Information	Accrual Policy	Is Accrual Active for Employee?	Hidden Online from Employee	Hidden from Employee Checks	Years of Service	Are Increments Required
	6 - Emergency Paid Sick Leave	Yes	No	No	3	No

Accrual Dates	Accrual Added	Hire Date	Accrual Date	Next Award	Next Reset	Next Anniversary
	04/13/2020	01/17/2017	01/17/2017	01/01/2021	01/01/2021	01/01/2021

New Hire Dates	Award Start	Redeem	Show Online	Show on Checks
	01/17/2017	01/17/2017	01/17/2017	01/17/2017

Accrual Amounts	Awardable Hours	Beginning Balances	Awarded Amount	Taken Amount	Available
	0.00	0.00	0.00	0.00	0.00

Accrual Limits	Period Limit	Year-to-Date	Life-to-Date	Annual Taken Limit	Min Time-Off Hours Available
	0.00	0.00	80.00	80.00	0.00